

IN THE DISTRICT COURT OF JOHNSON COUNTY, KANSAS

STATE OF KANSAS,

Plaintiff,

vs.

SCOTT P. MOORE,

Defendant.

)
)
)
)
)
)
)
)
)
)

Case No.: 10CR02633
Division 1

MOTION FOR RECONSIDERATION OF
DEFENDANT'S OPPOSITION TO STATE'S MOTION TO ADMIT EVIDENCE
PURSUANT TO K.S.A 60-455

COMES NOW, Defendant, SCOTT P. MOORE, by and through counsel Kevin E. J. Regan and does hereby move this Honorable Court to reconsider its previous order allowing the State to introduce certain evidence of Defendant's uncharged alleged prior bad acts pursuant to KSA 60-455.

FACTS

Defense counsel has analyzed substantial discovery furnished by the State relative to the prior uncharged acts subject to the State's 60-455 Motion. Counsel believes these voluminous and complicated facts merit Court review additional to the Court's brief proffer hearing previously held in this matter.

There are two (2) groups of allegations that have been made against this Defendant. One (1) set of allegations was made in November of 2005 and one (1) set of allegations was made in November of 2006.

Both of these sets of allegations are relative to incidents that allegedly occurred in another county at a church youth camp.

CLERK OF DISTRICT COURT
JOHNSON COUNTY, KS

2012 JUN 26 PM 4:14

2012 JUN 27 PM 1:12

These events shall be referred to as “The 2005 Incident” and “The 2006 Incident”.

FACTS SURROUNDING THE 2005 LINN COUNTY, KANSAS INCIDENT

In **November of 2005**, The United Methodist Church of the Resurrection (COR) held a youth retreat in Linn County, Kansas. Following the first night of the retreat, allegations of sexual impropriety surfaced throughout the camp. Subsequently, rumors unfolded suggesting that Scott P. Moore may have been the perpetrator of these alleged improprieties.

It is significant to note that none of the allegations occurring in 2005 were reported to law enforcement officials until one year later in 2006. Of consequence, experienced investigators who are familiar with the procedure common to these alleged sexual improprieties were not allowed proper inquiry into the factual circumstances surrounding the allegations until one year later.

Church officials, Randy Meyer and Nancy Brown, conducted their own investigation into the 2005 incident. They concluded that the allegations of sexual impropriety brought forth by Jordan Galbraith and Kyle Heslop were ultimately insufficient to properly identify the culprit of these alleged improper acts.

Church officials conducted the investigation by interviewing the alleged victims, their parents, and witnesses that church officials deemed relevant to uncover the truth behind these unexpected and inconclusive allegations.

The only recorded evidence of these interviews is that of typed notes written by church official, Randy Meyer. The individuals relevant to the alleged improprieties were never given the opportunity to give written statements nor did they have the inclination to report the allegations to law enforcement officials.

2005 INTERVIEW WITH ALLEGED VICTIM, JORDAN GALBRAITH

On **November 7, 2005**, church officials interviewed the alleged victim, Jordan Galbraith. Jordan discussed the events taking place on Friday, **November 4, 2005**.

Jordan Galbraith described the location of the incident as a cabin with five rooms. Four of the rooms contained bunk beds in which four youths were assigned to each room. The additional room was for the two cabin leaders, Scott Moore and Mark Childress.

Jordan woke up at some point during the night and noticed stimulation on the head of his penis. He alleged that his penis had been moved vertically into the waistband of his underwear with the head of his penis protruding over the waistband.

It is significant to note that Jordan never alleged he felt someone actually touching him, only that he thought his penis had been moved.

Jordan then noticed someone squatting at his bedside. He could see the outline of a person but not a face. The person then stood up, moved toward the door, waited in the doorway for a few moments and then left the room.

Jordan states that five minutes later "he" came back into the room and squatted around another person's bed and shined a flashlight. Jordan could not see the person's face this time either.

Jordan went to the bathroom and noticed a "counselor" leaving another bedroom and then going back in, but fails to identify this "counselor." Jordan went to a different bedroom and another youth indicated that he saw someone standing in his room; however, he also failed to identify or otherwise articulate any description of the figure.

The following morning (Saturday), while playing cards with friends in the cabin, Jordan and Kyle Heslop exchanged stories from the previous night (Kyle spent the night in a different

bedroom than Jordan). Kyle mentioned that he, too, thought he noticed someone's hand in his sleeping bag the previous night.

Jordan later asked his cabin-mates if they had seen or heard anything the night before and they indicated they had not.

2005 INTERVIEW WITH ALLEGED VICTIM, KYLE HESLOP

On **November 8, 2005**, church officials, Nancy Brown and Randy Meyer, interviewed Kyle Heslop concerning the night of November 4, 2005.

Kyle Heslop stated that when he went to bed that night he shut the door to the bedroom. However, Scott Moore had a rule the door must remain halfway open for safety precautions. Kyle shut the door twice due to noise coming from the other rooms. Both times he shut the door, Scott Moore came and opened it again.

Kyle was awakened during the by the sound of the door hitting the wall and then a flashlight was shined in his face. Then at some point he "might" have seen a hand in his sleeping bag around his crotch area.

Later that night, Kyle sees a light shined in his face a second time. He then saw a "guy" try to reach for him. Kyle claims this figure was pretty tall and kind of bulky, but not huge. Kyle acknowledges that he did not see a face, but only an outline of a person.

The next morning (Saturday), Kyle was changing his clothes and someone asked if he heard what happened to Jordan. Kyle and Jordan then discussed their stories.

Kyle and Jordan attempted to set up a meeting Saturday afternoon at 2:00 p.m. with Terri Schrag (COR's High School Program Director) to discuss the events of the previous night. Terri missed the meeting so they rescheduled for 5:15 p.m. However, Kyle and Jordan missed the subsequent meeting.

At dinner, Kyle was called to Lee Jost's office (COR's Youth Director). Kyle went to the chapel office where Lee Jost and Mike Meyers (Youth Front camp's Retreat Host) were waiting to talk to Kyle. Lee talked to Jordan and then to Kyle.

Lee noted that the two boys' stories were inconsistent based on their descriptions of the alleged intruder (Jordan claims the person was stocky, but not huge and Kyle claims the person was thin and wearing a t-shirt that said "Night Stalker" on the back). At the time, Scott Moore weighed 260 pounds and has never owned a t-shirt with any writing that could be misconstrued as saying "Night Stalker."

Kyle acknowledged that he could not identify the person in his room. Moreover, he is unsure whether anything had actually happened to him, only that he suspected Scott Moore after talking to other youths around the camp.

Kyle asked the other youths in his room if they had heard or seen anything the night before and they indicated they had not.

2005 INTERVIEW WITH DEFENDANT'S CABIN-MATE, MARK CHILDRESS

On **November 8, 2005**, Randy Meyer and Nancy Brown interviewed Scott Moore's fellow youth leader at the camp, Mark Childress. Childress was Scott Moore's cabin-mate on November 4, 2005.

Childress stated that he did witness Scott get out of bed once to use the restroom, which was inside of their room (private bathroom), and another time around 6:00 a.m. to check on some noise (Scott thought he heard yelling coming from another room). Childress indicates that Scott came back within a minute.

Childress stated that he is a very light sleeper and was confident he would have heard someone either coming or going from their room.

It is significant to note that Childress felt like Jordan was trying to garner attention by fabricating this story, and that several boys had apologized to Scott for Jordan's lies.

Childress believes there is no way that Scott Moore was the perpetrator of the alleged misconduct because if Scott was gone for any long period of time it certainly would have awoken him and aroused suspicion.

CONCLUSION OF THE 2005 INCIDENT

The most noteworthy issues of the 2005 incident are: (1) neither of the alleged victims were able to positively identify anyone matching the description of Scott Moore, (2) the boys' descriptions of the person did not match (Jordan Galbraith claims the person was tall and bulky, but not huge, and Kyle Heslop claims the person was thin and wearing a t-shirt with a logo "Night Stalker" on the back), (3) neither of the alleged victims indicated that they actually felt someone touching them (Jordan thought his penis was in an awkward position and Kyle said he "might" have seen a hand moving toward his crotch area), (4) Childress believes Jordan was trying to garner attention, and (5) Childress believes there is no way Scott Moore was the perpetrator of this misconduct because he would have noticed Scott leave their room.

FACTS SURROUNDING THE 2006 LINN COUNTY, KANSAS INCIDENT

In **November of 2006**, the Church of the Resurrection held a Rez-Life High School Metamorphosis retreat at the YouthFront Camp South in Linn County, Kansas. Again in 2006 there were allegations of impropriety directed toward Scott Moore.

It is significant to note that neither of the alleged victims to the 2006 incident stated that they actually felt someone touching them.

Similar to the 2005 incident, this occurrence happened in a cabin. There were four boys assigned to each room and two cabin leaders assigned to the leader room, as illustrated below:

<u>Room 1:</u>	<u>Room 2:</u>	<u>Room 3:</u>	<u>Room 4:</u>
Andrew Farnsworth	Kyle Kitzsteiner	Kyle Glaser	Ben Gooding
Max Miller	Landon Rosevar	Joey Walter	Tommy Chaney
DJ Owen	Nick Snodgrass	AJ Scott	Collin Williams
Parker Rossier	Kyle Roberson or	Kyle Roberson or	Bret Kingcade
	Tyler Vollick	Tyler Vollick	

Leader Room:

Scott Moore

Joey Wilson

2006 WRITTEN STATEMENT OF ALLEGED VICTIM, COLLIN WILLIAMS

On November 10, 2006, Collin Williams gave a voluntary written statement to the Linn County, Kansas Sheriff's Department concerning the incident that took place at the Rez-Life Metamorphosis Retreat that ran from November 3-5, 2006.

Collin Williams claims that on Friday night he noticed something that "could have been just a part of his imagination." He indicated that a "figure" with a flashlight was looking at Ben Gooding and Bret Kingcade's bunk. Then the figure came over to he and Tommy Chaney's bunk and spent 3-5 minutes bent over and looking at Tommy, occasionally shining a "clicky" flashlight.

Collin Williams indicated that at this time he thought he heard the sound of elastic hitting skin. Once the figure stood up, the figure looked straight at him. However, Collin could not identify any facial features whatsoever on this figure. Even still, Collin claims the figure fit the shape, height, and haircut outline as Scott Moore.

Once the figure looked at Collin, he immediately shut his eyes to pretend like he was sleeping, but he opened them a few seconds later. The figure then shined the flashlight over the lower half of his body, but only for a second.

Collin goes on to state that the figure then reached a hand underneath his sheets. Collin immediately sprung up and the figure vanished. He claims that 5 seconds later, he heard Scott Moore say, "I thought I heard something." When Scott left the room, Collin concluded that Scott was the figure who reached underneath his sheets.

It is significant to note that Collin Williams was never touched inappropriately; he only claims that a figure was trying to reach underneath his sheets. However, Collin fails to identify or otherwise articulate any description matching that of Scott P. Moore. The only identifiers Collin sets forth is that the figure had the same shape, height, and haircut outline as Scott Moore.

2006 WRITTEN STATEMENT OF ALLEGED VICTIM, TOMMY CHANEY

On **November 10, 2006**, Tommy Chaney gave a voluntary written statement to the Linn County, Kansas Sheriff's Department concerning the incident that took place at the Rez-Life Metamorphosis Retreat that ran from November 3-5, 2006.

Tommy Chaney begins his statement by maintaining that he was awake most of Saturday night because he was sick. He was sleeping on the bottom bunk with his face turned toward the wall and he slept with a flashlight.

At some point during the night, Tommy felt someone poking him on the back. He turned and shined the flashlight at the person and said he was "100% sure it was Scott Moore."

The following morning (Sunday), Scott came into the room and said, "sorry if I woke you guys up last night I had a dream that Tommy was gone."

Tommy was unable to testify about the events occurring on Friday night because he was asleep the whole night.

It is significant to note that Tommy does not allege he was touched in a sexual manner; only that someone poked him in the back. He is certain that it was Scott. However, Scott admits

that he had a dream that Tommy was gone, which explains why he was poking Tommy on the back.

2006 WRITTEN STATEMENT OF WITNESS, PARKER ROSSIER

On **November 10, 2006**, Parker Rossier gave a voluntary written statement to the Linn County, Kansas Sheriff's Department concerning the incident that took place at the Rez-Life Metamorphosis Retreat that ran from November 3-5, 2006.

Parker Rossier begins his statement by maintaining that we woke up at some point between 3:00-5:00 a.m. to use the restroom. After using the restroom, Parker claims to see Scott Moore coming from the corridor located outside of Collin Williams and Tommy Chaney's room (Parker was sleeping in a different room than Tommy and Collin). Upon this encounter, Scott said, "I thought I heard something." Then both Scott Moore and Parker Rossier returned to their rooms.

Parker admits to hearing similar rumors about Scott Moore from the previous year in 2005.

It is significant to note that Parker Rossier did not see Scott Moore near any of the boys, only that Scott seemed to be coming from Collin Williams and Tommy Chaney's room. Scott does not deny going into Collin and Tommy's room to make sure Tommy was still in his bed.

WRITTEN STATEMENT OF WITNESS, BEN GOODING

On **November 10, 2006**, Ben Gooding gave a voluntary written statement to the Linn County, Kansas Sheriff's Department concerning the incident that took place at the Rez-Life Metamorphosis Retreat that ran from November 3-5, 2006.

On Friday night, Ben Gooding was staying in a room with Tommy Chaney, Collin Williams, and Bret Kingcade. Ben was sleeping on the top bunk with Bret below him, and Collin was on the other top bunk with Tommy below him.

Ben maintains that a light being shined in his room awakened him. He witnessed a "tall person with a white long-sleeve shirt" standing in the room, shining a flashlight at Collin for a few seconds and then shining the light on Tommy. The person then shined the light back on Collin, but Collin started to move so the person left the room.

Ben claims that when the person turned to leave the room, he could positively identify the person as Scott Moore.

It is significant to note that Ben was situated only a few feet from Collin and Tommy's bunk, and he did not allege that Scott was touching either boy, only that he was shining a flashlight on them.

CONCLUSION OF THE 2006 INCIDENT

The most noteworthy issues of the 2006 incident are: (1) Collin Williams was never touched in a sexual manner, he only claims that someone was reaching underneath his sheets, and does not identify the person, (2) Tommy Chaney was never touched in a sexual manner, he only claims that someone poked his back, which corroborates Scott Moore's story that he was making sure Tommy was still in his bunk, (3) Parker Rossier claims to have seen Scott Moore leaving the corridor located in the area of Tommy and Collin's room, but never saw Scott touching the boys or acting inappropriately in any fashion whatsoever, and (4) Ben Gooding was staying in the same room as Tommy and Collin, and was awake when Scott came in; however, he never says that Scott was touching the boys, only that he was shining a flashlight on them.

DISCREPANCIES BETWEEN THE 2005 AND 2006 INCIDENT

It is significant to note that the boys from the 2006 incident were aware of the incident in 2005, and that Scott Moore was involved.

None of the boys from the 2005 incident were able to identify or otherwise articulate a description matching that of Scott P. Moore. In fact, Jordan Galbraith and Kyle Heslop's description of the alleged intruder were inconsistent. Jordan claims the figure was tall and bulky, but not huge. Kyle claims the person was thin and wearing a t-shirt that said "Night Stalker" on the back. Scott Moore does not have a shirt with "Night Stalker" written on the back.

Jordan Galbraith (2005) only states that his penis was in an awkward position and Kyle Heslop only states that he "might" have seen a hand moving toward his crotch area. Likewise in 2006, Collin Williams states that a "figure" was reaching toward his crotch area while Tommy Chaney does not allege any sexual touching at all. Tommy only claims that someone poked him on the back and he turned to identify the person as Scott Moore.

Moreover, there are no witnesses to the 2005 incident that identify Scott Moore as the perpetrator. Jordan only infers that it was Scott Moore because Scott was in the bedroom at 6:00 a.m. Mark Childress, Scott's roommate, indicated that there was no way Scott could have left the room without him noticing. In fact, the only time Scott left the room was at 6:00 a.m., and he was back within a minute.

Unlike the lack of witnesses to the 2005 incident, there are witnesses to the 2006 incident (Parker Rossier and Ben Gooding). However, neither witness alleges that Scott was touching the boys. Parker only claims that he saw Scott between 3:00-5:00 a.m. leaving the corridor located in the area of Collin and Tommy's room. Ben Gooding was within a few feet of Collin and Tommy's bed and only alleges that Scott was shining a flashlight, not that Scott was touching them.

It is significant to note that none of these boys allege that they actually felt someone touching them inappropriately. The allegations are set forth below:

- (1) 2005 - Jordan Galbraith felt that his penis was in an awkward position when he woke up, but never felt someone touching him.
- (2) 2005 - Kyle Heslop "might" have seen a hand near his crotch at "some point" during the night.
- (3) 2006 - Collin Williams said that a figure was reaching underneath his sheets, but it "may have been a figment of [his] imagination."
- (4) 2006 - Tommy Chaney was poked on the back (no sexual touching whatsoever).

A very close review of this discovery indicates that evidence of these incidents should not be introduced against this Defendant in this case for several reasons.

First of all, the allegations in both incidents are not similar to those in the case at bar in any way, shape or form.

In the 2005 incident, a number of boys claimed that some type of inappropriate touching may have taken place. However, they were unable to identify the Defendant as the perpetrator of this touching. None of the complainants were certain they had been sexually touched by anyone.

Defendant, at the time, had a roommate, a fellow youth leader, who has been interviewed by church authorities and has indicated that he was with the Defendant in his room on the night of the allegations and that Defendant did not leave the room for any meaningful period of time or during the time frame the alleged bad acts allegedly took place.

Further, the perpetrator of these acts allegedly was wearing a t-shirt with the logo Night Stalker on it.

The Defendant, at that time, or any other time, has never possessed or worn such a shirt.

The description given by the boys of the wrongdoer does not match that of the Defendant.

It should be noted that these boys were sleeping in small camp type cabins where the outside door was unlocked and there was easy access for outsiders to the cabin.

It is significant to note that the boys' description of whoever was in the room does not match that of Scott Moore. Mr. Childress, Defendant's roommate at the time, gives the Defendant a rather reliable alibi for his whereabouts during the time frame of these accusations.

Accordingly, this evidence is so tenuous, unrelated and dissimilar from the charges brought in this case that it should not be allowed.

It is significant to note that, in the 2006 incident, no allegations of sexual touching of any kind have been made.

It is only alleged that this Defendant was allegedly shining a flashlight in some other boys' room during the night.

No sexual touching has been alleged regarding this incident.

The Defendant, as Youth Leader, had a legal right to be checking on the boys' welfare in the room.

On the night before these allegations were made, some girls from a neighboring camp had invaded the cabin and taken a lot of belongings from the boys' rooms. There was a legitimate reason for Defendant to be looking around the cabin to make sure there were no other incidents at the scene.

All of these allegations were brought to the local Linn County Prosecuting Attorney for review.

After reviewing the discovery file available to him provided by the Church and the police, the Linn County prosecutor decided not to file these charges.

It is also significant to note that Defendant passed a polygraph examination given to him by the polygraph examiner for the Kansas City, Missouri police department.

**MEMORANDUM OF LAW IN SUPPORT OF DEFENDANT'S MOTION FOR
RECONSIDERATION**

We respectfully submit that Defendant's alleged misconduct prior to the offense charged in this case is inadmissible under K.S.A. 60-455. This Statute, which controls the admission of prior crimes or bad acts in the state of Kansas requires that the Court determine the evidence is relevant to prove a material fact, that the material fact is in dispute, and that the probative value of the evidence outweighs the prejudicial effect of this dangerous type of evidence. State v. Gunby, 282 Kan. 39, 48, 144 P.3d 647 (2006).

We respectfully submit that, should the Court allow this evidence to be admitted against this Defendant, Defendant will be required to try three (3) different cases and establish his innocence against three (3) different sets of facts in this case.

Defendant respectfully submits that the prejudicial value of this evidence clearly outweighs any probative value of this evidence against him.

The allegations made in the 2005 and 2006 incidents are greatly dissimilar to those in the case at bar.

Further, since there was no identification of the Defendant in the 2005 incident, these allegations should clearly be excluded from evidence.

Since there was no sexual touching alleged in the 2006 incident, these acts do not rise to the level of any type of similarity required for admission under K.S.A. 60-455.

We further respectfully submit that the relatively new provision of K.S.A. 60-455(d), is unconstitutional on its face and as applied against Defendant in this case. Without any

safeguards as to admissibility, they open a floodgate of evidence against this Defendant without affording him any due process limits on admissibility of this evidence.

This subsection does not provide Defendant with any protections afforded by K.S.A. 60-455. As applied in this case, the statute denies Defendant due process necessary for a fair trial by jury as guaranteed by the Constitution of the United States and the State of Kansas.

Subsection (d) basically allows the State to meet a much lower threshold than required by 60-455 in allowing evidence of prior bad acts.

We remind the Court that there will be no issues regarding intent, opportunity or motive presented by the Defense in this case.

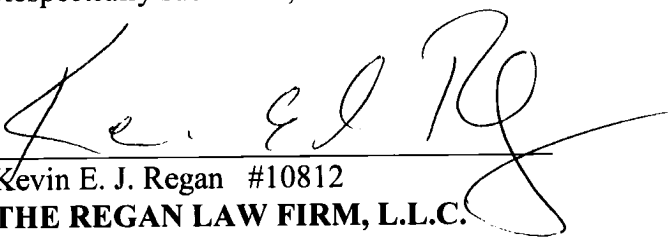
Therefore, the State's intention to admit this evidence under these facts is inappropriate.

CONCLUSION

For the reasons stated above, we hereby respectfully request this Honorable Court to reconsider its previous ruling allowing proof of these facts into evidence against Defendant in this case.

WHEREFORE, Defendant respectfully moves this Honorable Court to reconsider its prior ruling admitting evidence pursuant to K.S.A. 60-455 and to deny State's Motion to Admit said evidence.

Respectfully submitted,



Kevin E. J. Regan #10812

THE REGAN LAW FIRM, L.L.C.

1821 Wyandotte, Suite 200

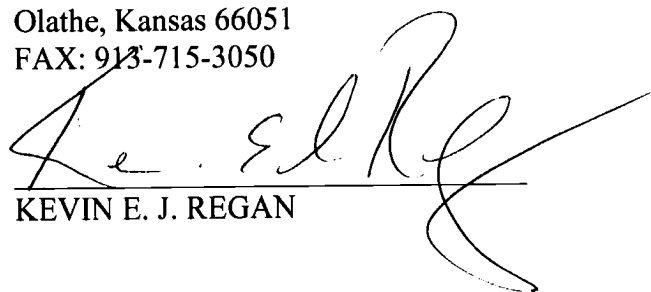
Kansas City, Missouri 64108

(816) 221-5357

(816) 221-5236 FAX

I certify that I hand delivered and faxed a
copy of the above and foregoing
on this 26th of June, 2012, to:

Ms. Erika Rasmussen, ADA
Johnson County District Attorney's Office
PO Box 728
Olathe, Kansas 66051
FAX: 913-715-3050



KEVIN E. J. REGAN